
8:30 a.m. Law and Motion

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Deposition: Plaintiff moves pursuant to CCP § 2025.450 for an order compelling the deposition of the Custodian of Records of Defendant Redding Senior Living LLC dba Hilltop Springs Senior Living. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Plaintiff filed this Motion to Compel Deposition pursuant to CCP § 2025.450 on July 2, 2026 seeking to compel a deposition they noticed for July 30, 2026. (Decl. Yarnall ¶ 31 Ex. G.) The Motion was brought prematurely, as the conditions of CCP § 2025.450(a) had not been met. Additionally, although the motion was accompanied by a meet and confer declaration as required by CCP 2025.450(b)(2), it appears this matter could have been resolved without the Court's intervention. Defendants' evidence establishes good faith efforts to find a mutually agreeable date for deposition. Defendants offered a July 15 date, which Plaintiff had previously indicated was acceptable. Plaintiff proceeded to file this motion, promising to take the matter off calendar if the July 30 deposition proceeded. This is not a good faith effort at resolution and unnecessarily burdens the court and parties with motion practice.

Additionally, the Plaintiff continued hearing on this Motion from August 3 to August 24. Plaintiff also filed a Reply on August 17, 2026, which raises new facts and argument not presented in the original Motion. Moreover, Plaintiff concedes that it has taken a deposition that partially satisfies the relief sought here. Plaintiff is directed to comply with the CCP and to undertake good faith efforts to meet and confer before seeking court intervention. The Motion is **DENIED**.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion for Terminating Sanctions: Defendant Joshua Littlepage move for an order of terminating sanctions against Plaintiff William Hollowell pursuant to CCP § 2030.010, 2023.010, 2030.300(e) and 2031.320.

As a preliminary matter, the Court notes that Plaintiff filed a declaration on July 21, 2026, one day after the present motion was filed. Plaintiff's declaration has attached a number of documents including further responses to discovery. The Court will consider the contents of the declaration in ruling on this motion. Further, the Court notes that the declaration also attached a purported motion for relief, but it was not properly filed as a motion. Therefore, the Court finds that the "motion" is not before the Court at this time.